

No Case Submissions

Only made after close of prosecution case. Section 66 *Criminal Procedure Act 2009*

The question is **could** the accused be convicted, not whether the accused **ought** to be convicted.
May v O'Sullivan (1955) 92 CLR 654

Evidence is tenuous or inherently weak, prosecution case taken at its highest.
Doney v R (1990) 171 CLR 207

Competing inferences, those in favour of the police case should be preferred.
Attorney-General's Reference (No. 1 of 1983)(1983) 2 VR 410

ISSUE

Your honour, in relation to the issue of whether the accused has a case to answer; I rely upon the case of:

RULE

- A. *May v O'Sullivan* (1955) 92 CLR 654 where Dixon CJ, Webb, Fullagar, Kitto and Taylor JJ held at 658:
“When at the close of the case for the prosecution, a submission is made that there is “no case to answer”, the question to be decided is not whether on the evidence as it stands the defendant **ought** to be convicted, but whether on the evidence as it stands he **could** lawfully be convicted”.
- B. *Attorney-General's Reference* (No 1 of 1983)(1983) 2 VR 410 at 415 where Young CJ, Anderson and Gobbo JJ held at 415:
“The question whether the Crown has ultimately excluded every reasonable hypothesis consistent with innocence is a question of fact for the jury and therefore, if the Crown has led evidence upon which the accused could be convicted, a trial judge should not rule that there is no case to answer or direct the jury to acquit simply because he thinks that there could be formulated a reasonable hypothesis consistent with the innocence of the accused which the Crown has failed to exclude. Similarly a trial judge should not rule that there is no case for the accused to answer because he has formed the view that, if the decision on the facts were his and not the jury's, he would entertain a reasonable doubt as to the guilt of the accused. It is always a question for the jury whether a reasonable doubt exists as to the guilt of the accused ...”
- C. *Doney v R* (1990) 171 CLR 207 where Deane, Dawson, Toohey, Gaudron and McHugh JJ held at 214:
“...if there is evidence (even tenuous, weak or vague) which can be taken into account by the jury in its deliberations and that evidence is capable of supporting a verdict of guilty, the matter must be left open to the jury for its decision.”

APPLICATION

(Before you refer to the facts you MUST seek permission from the Magistrate)

Apply the test to your case, showing why there is a case to answer referencing the evidence that has been led during the prosecution case to support your argument.

CONCLUSION

It is my submission that the accused does have a case to answer.